

The following issues cannot be considered in review proceedings:

- the assessment of inventive step (R 1/08, R 12/09 of 15 January 2010, R 6/11, R 14/13, R 6/15), including the determination of the closest prior art (R 5/13)
- the interpretation of a prior art document (R 9/08, R 8/09, R 4/11)
- the assessment of clarity (R 15/10)
- the assessment of public prior use (R 19/10)
- the assessment of evidence (R 21/09)
- whether to remit a case to the department of first instance (R 10/09, R 9/10, R 12/09, R 7/13)
- whether to admit a new request (R 10/11, R 11/11, R 13/11, R 4/13) or a new document (R 10/09, R 17/11) under Art. 12 RPBA 2007; or under Art. 13(1) RPBA 2007 (R 1/13, R 4/14, R 6/17)
- whether an appeal is admissible (R 10/14, R 10/09)
- whether or not the exception to reformatio in peius mentioned in G 1/99 (OJ 2001, 381) applies to a particular case (R 4/09; see also R 10/14)
- whether to refer a question to the Enlarged Board of Appeal under Art. 112 EPC (R 17/14, R 7/13)
- whether the boards are empowered to decide on a request to hold oral proceedings before the examining division in Munich instead of in The Hague (R 13/14)
- sufficiency of disclosure (R 2/14 of 22 April 2016).

3.5. Petitions for review of an interlocutory decision

In R 2/15 of 21 November 2016 the Enlarged Board held that petitions for review of interlocutory decisions were not generally inadmissible (see also R 5/08, R 5/15). The Enlarged Board saw no reason to assume that Art. 106(2) EPC, which stipulates that a decision which does not terminate proceedings as regards one of the parties can, as a rule, only be appealed together with the final decision, was to be applied to the petition for review procedure. Neither Art. 112a EPC nor R. 104 to 110 EPC contained a provision corresponding to Art. 106(2) EPC.

In R 5/15 the Enlarged Board acknowledged that interlocutory decisions dealing with objections of suspected partiality unquestionably had consequences of utmost importance for the proceedings as a whole. The petitioner had argued that it was likely that the Enlarged Board would set aside the decision of the board in its alternate and that the board

had violated its right to be heard by failing to consider its request for postponement. The Enlarged Board held it was not appropriate to base a decision on speculation. The interlocutory decision of the Board in its alternate composition was binding and had the force of *res judicata*.

3.6. Obligation to raise objections

Under R. 106 EPC, a petition under Art. 112a(2)(a) to (d) EPC is only admissible where an objection in respect of the procedural defect was raised during appeal proceedings and dismissed by the board, except where such objection could not be raised.

3.6.1 Purpose of Rule 106 EPC

The purpose of R. 106 EPC is to give the board a chance to react immediately and appropriately by either removing the cause of the objection or by dismissing it (see e.g. R 5/08, T 1544/08, T 144/09, T 1977/13), thereby ensuring legal certainty for the parties and the public as to whether the ensuing substantive decision of the board is open to review under Art. 112a EPC (R 4/08, R 1/10, R 14/11, R 16/12). By ensuring that errors can be corrected by a board before a final decision is taken, R. 106 EPC also ensures that unnecessary petitions for review are avoided (R 14/11, R 18/12).

3.6.2 Requirements of a valid objection

a) Recognisable immediately as an objection, defect clear and unambiguous

Raising an objection under R. 106 EPC is a procedural act and a precondition for access to the extraordinary legal remedy under Art. 112a EPC (R 4/08, R 7/08, R 3/11, R 7/11, R 16/12). The objection must be expressed by the party in such a form that the board is able to recognise immediately and without doubt that an objection under R. 106 EPC is intended. It also must be specific, indicating clearly and unambiguously on which procedural defect the petitioner intends to rely (see R 4/08, R 7/08, R 8/08, R 1/10, R 17/10, R 7/11, R 5/12, R 6/12, R 16/12: established jurisprudence, R 3/14, R 8/16).

An objection under R. 106 EPC is additional to and distinct from other statements, such as arguing or even protesting against the conduct of the proceedings or against an individual procedural finding (R 2/08, R 7/08, R 9/09, R 1/10, R 14/11, R 21/11, R 16/12). An objection must be expressly described as such (R 8/08, R 21/11, R 7/18). However, even if an objection does not contain an explicit reference to R. 106 EPC, it can qualify as an objection under R. 106 EPC (R 21/09; see also R 17/14, R 12/14).

In R 18/12, the Enlarged Board stated that only an objection which, in substance, raised a procedural defect which could be the subject of a petition for review under Art. 112a(2)(a) to (d) EPC could be regarded as an objection within the meaning of R. 106 EPC. In the case in hand, the Enlarged Board held that objecting, in substance, to the board's conclusion on clarity did not qualify as such an objection, even if the petitioner explicitly referred to Art. 113 EPC.

In R 8/18 the Enlarged Board noted that neither the petition, nor the request for correction of the minutes, nor the declarations of the representatives, stated anywhere that Art. 113 EPC or a violation of the right to be heard was mentioned by the petitioner in connection with the refused interruption, in which case the Enlarged Board might have recognised the objection as a reference to Art. 112a(2)(c) EPC. The Enlarged Board therefore concluded that the petitioner's own initial submissions did not suggest, let alone prove that a recognisable objection within the meaning of R. 106 EPC had been made.

b) Objection raised in good time by persons capable of validly doing so

In R 1/14 the Enlarged Board held that it was an indispensable prerequisite for the admissibility of a petition that an objection be raised "in good time", i.e. at a time when the board can still rectify the alleged violation. An objection to a refusal to postpone the date of oral proceedings must therefore be made before or, at the latest, at the beginning of these oral proceedings.

In R 21/09 the Enlarged Board held that if an objection is made during oral proceedings, the fact that it is only raised after further requests have been discussed has no bearing on the admissibility of the petition.

In R 14/11 the Enlarged Board held that an objection cannot be formulated prematurely, i.e. before a procedural defect has come into existence (see also R 8/08, R 17/10).

In R 9/09 the board held that an accompanying person cannot validly make procedural declarations, such as an objection under R. 106 EPC (see also R 3/08).

c) Different defects must be objected to and considered separately

Different alleged procedural defects must be objected to separately under R. 106 EPC (R 5/13; see also R 10/14), and also have to be considered separately by the Enlarged Board (R 3/08, R 17/11).

3.6.3 Examples of invalid objections

The following are examples of acts that the respective boards have found did not qualify as an objection under R. 106:

- contesting insufficiency of disclosure or offering new documents (R 7/08)
- requesting that a late-filed document not be admitted into the proceedings (R 9/09, R 17/10)
- protesting against the hearing of an expert (R 2/11)
- an objection against the board raising a new line of argument or a request for remittal or postponement (R 14/11)

- requesting that a board make a statement on the scope of a claim, the request being repeatedly refused (R 3/14)

3.6.4 Minutes as evidence that the objection was raised

The test whether an objection was validly raised during oral proceedings is normally the minutes which, as prescribed by R 124(1) EPC, must contain the relevant statements of the parties (R 4/08, R 17/10, R 8/16). The absence in the minutes of an objection under R 106 EPC and of any request for correction of the minutes is a strong indication that such an objection, if any, was at least not duly qualified (R 3/11; see also R 5/14, R 6/13, R 3/14).

In R 7/11 the Enlarged Board noted that unless duly corrected, the minutes of the oral proceedings authenticate the facts they relate to, and in R 2/12 of 17 October 2012 the Enlarged Board stated that if a party is really convinced that a violation of its right to be heard has occurred during the oral proceedings the subsequent objection must be clearly raised as such, so that it will oblige the board of appeal to react, and require this to be recorded in the minutes in accordance with R 124 EPC.

In R 8/17 the board stated that the petitioner's own submissions did not allow the conclusion that it had raised an objection in the oral proceedings which could qualify as an objection under R 106 EPC and if the petitioner had considered the minutes to be incomplete in this regard, one would have expected it to submit a corresponding request for correction (see R 17/10). However, in R 3/08 the Enlarged Board also took private minutes taken by an employee of the petitioner into account.

In R 8/16 the Enlarged Board noted that while there was no strict formal obligation on parties to request a correction to the minutes, not doing so will leave them with the burden of proof against the minutes in case of dispute.

3.6.5 Objection could not have been raised

Under R 106 EPC an objection is not a requirement for the petition to be admissible where such objection could not be raised during the appeal proceedings. Therefore, if the alleged procedural defect becomes apparent to the parties only through the written reasons for the decision (in R 3/10: through the announcement of the decision), the admissibility of the petition is not conditional upon a corresponding objection having been raised during the oral proceedings (R 4/08; see, by way of example, also R 1/08, R 2/08 (written procedure), R 9/08, R 3/09, R 4/09, R 7/09, R 11/09, R 19/10, R 8/11, R 21/11, R 14/13). If a petition addresses mostly the reasoning of a decision, the benefit of the doubt is given to the petitioner as to its possibility to raise an objection before the end of appeal proceedings (R 1/11, see also R 18/14).

In R 16/09 the petitioner requested the correction of the minutes of oral proceedings in order to establish what, in its view, had been the order of the procedural steps followed by the board, to prove that it could not raise any objection in respect of the procedural defect during oral proceedings. The Enlarged Board held that the lack of possibility for the

petitioner to raise an objection could not be excluded, even if the request to correct the minutes was rejected.

In the proceedings underlying R. 10/08, the petitioner wanted to submit a new auxiliary request, allegedly during the announcement of the decision at the oral proceedings, but the board had declared itself formally bound by the decision as announced. The petitioner could thus no longer raise an objection "during the appeal proceedings". However, in R. 12/14 the Enlarged Board held that, if the pronouncing of the decision immediately follows the closing of the debate, requiring the appellant to interrupt the chairman would overstretch the obligations arising from R. 106 EPC.

In R. 5/17 the petitioner (opponent) had misinterpreted the acts and words of the board in the decision under review and without further questioning based its strategy on this interpretation. The Enlarged Board did not accept the argument of the petitioner that, although objectively an objection could have been raised, it could nevertheless not have been raised because the petitioner subjectively had no reason to raise an objection. Only the petitioner was responsible for this misunderstanding, and thus had to bear the consequences thereof.

3.6.6 Compliance with Rule 106 EPC left open

If a request is unallowable, it can be left open whether the petitioner complied with R. 106 EPC (R. 15/09, R. 18/09, R. 20/09, R. 16/11, R. 2/12 of 17 October 2012, R. 16/12, R. 1/13, R. 15/13, R. 7/14, R. 17/14, R. 2/16).

3.7. Contents of the petition for review

3.7.1 Petition must be adequately substantiated

In R. 5/08 the Enlarged Board stated it was clear that apart from any reasons accepted by the Enlarged Board as special enough to justify the submission of additional facts, arguments or evidence, the petition itself must be adequately substantiated. R. 107(2) EPC requires a petition to indicate the reasons for setting aside the decision of a board of appeal and the facts and evidence on which it is based. This corresponds to the similar provisions requiring substantiation of an opposition or an appeal (R. 76(2)(c) and R. 99(2) EPC). The contents of a petition must be sufficient for the petitioner's case to be properly understood on an objective basis and must enable the Enlarged Board (and any other parties) to understand immediately why the decision in question suffers from a fundamental procedural defect. The petition must thus set out the reasons why it requests that the impugned decision be set aside, specify the facts, arguments and evidence relied on and must do so within the time limit for filing the petition, namely two months after notification (see Art. 112a(4) EPC; see also R. 4/13, R. 17/13, R. 3/18).

In R. 9/10 the Enlarged Board held that an implicit request to set aside the decision was sufficient. In R. 20/10 the Enlarged Board stated that the obligation to file a reasoned statement could not be construed so narrowly as to mean that any kind of reasoning was sufficient to fulfil this requirement, as long as it was extensive enough. In R. 2/08 the